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Case Number: 23NWCV03952 Hearing Date: August 11, 2026 Dept: P

SARBJIT SINGH v. KINH TO

CASE NO.: 23NWCV03952

HEARING: 08/11/2026 @ 10:30 AM

#11

TENTATIVE ORDER

Defendant Kinh To aka Kinh To Quang, individually, and
dba Farmer Boys Liquor Market's motion for summary judgment is GRANTED.
Defendant's motion for summary adjudication is MOOT.

Moving party to give notice.

Defendant Kinh To aka Kinh To Quang, individually, and dba
Farmer Boys Liquor Market (Defendant) moves for summary judgment or,
alternatively, summary adjudication.

Background

On December 6, 2023, Plaintiff Sarbjit Singh (Plaintiff) filed
this breach of contract against Defendant and Does 1 through 25. The complaint
alleges that on July 12, 2023, Plaintiff and Defendant entered into a written
agreement for the sale of Farmer Boys Liquor Market, located at 7501 Somerset
Blvd., Paramount, CA 90723 (Subject Property); however, after escrow opened and
after Plaintiff completed various conditions under the agreement, Defendant

sought to close escrow, withdrew the transfer of the liquor license, and locked Plaintiff out of the premises. (Complaint, ¶¶ 6-17.) The complaint asserts three causes of action: (1) breach of written contract, (2) specific performance, and (3) declaratory relief with request for temporary, preliminary, and permanent injunctive relief.

On June 5, 2026, the Court granted Plaintiff's former counsel's motion to be relieved as counsel.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) In reviewing a motion for summary judgment, courts apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.)

In moving for summary judgment, a defendant has the "burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) A defendant must support the motion "with evidence including 'affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of... judicial notice.'" (*Aguilar*, supra, 25 Cal.4th at p. 855, citing Code Civ. Proc., § 437c, subd. (b).)

Once a moving party has satisfied the initial burden of proof, "the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.) "Where...the motion for summary judgment is unopposed, the moving party may still not be granted summary judgment unless his papers clearly establish that there is no triable issue of fact and he is entitled to

judgment.” (Harman v. Mono General Hospital (1982) 131 Cal.App.3d 607, 613.)

Summary judgment must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, see also Code Civ. Proc., § 437c, subd. (c).) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Yanowitz v. L’Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1127.)

Discussion

Defendant moves for summary judgment or, alternatively, summary adjudication on the following grounds: (1) failure of condition precedent; (2) fraud/forged lease/unclean hands; (3) \$50,000 outside-escrow payments were pre-existing debts; (4) mandatory mediation/arbitration; (5) lack of standing; (6) Plaintiff’s breaches excuse Defendant’s performance; (7) specific performance is unavailable due to fraud, unclean hands, and the business is not unique; and (8) the declaratory relief cause of action is duplicative. This motion is unopposed.

Defendant argues that Plaintiff’s failure of satisfying a condition precedent constitutes a complete defense.

To prevail on a breach of contract claim, a plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiffs.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

“Generally, a party’s failure to perform a condition precedent will preclude an action for breach of contract.” (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1192.) “[A] condition precedent is either an act of a party that must be performed or an uncertain event that must happen before the contractual right accrues or the contractual duty arises.” (Platt Pacific, Inc. v. Andelson (1993) 6 Cal.4th 307, 313, citing Civ. Code, § 1436.)

Condition precedents may be created either expressly, by words such as "subject to" or "conditioned upon" or impliedly. (Estate of Jones (2022) 82 Cal.App.5th 948, 953, citation omitted.) "They are generally disfavored and are strictly construed against a party arguing the agreement imposes one." (Ibid.) "Courts will not interpret a provision as a condition precedent absent clear, unambiguous language requiring that construction." (Ibid.) "[C]ourts shall not construe a term of the contract so as to establish a condition precedent absent plain and unambiguous contract language to that effect." (Ibid.)

Defendant establishes the following: Defendant is the seller and property owner of the Subject Property. (UMF, ¶ 1.) On July 12, 2023, the parties entered into a written agreement, a Business Purchase Agreement (BPA), for the sale of the Subject Property for \$80,000 in which Plaintiff is named individually as the buyer. (UMF, ¶ 7.) The BPA was drafted by Plaintiff's broker. (UMF, ¶ 7.)

Section 12 of the BPA provides:

LEASE (Check applicable items):

The sale is contingent upon Buyer obtaining, within 21...Days After Acceptance, the assignment, new lease, option to extend, sublease or other lease as indicated below. Buyer shall submit an application for such lease to Seller's landlord or Seller, as applicable, within 15...Days After Acceptance.

(UMF, ¶ 8, BPA, § 12.) Additionally, the following options provision is checked: "A new lease with Seller's landlord, on terms acceptable to Buyer, to become effective concurrently with the Close Of Escrow." (UMF, ¶ 8, BPA, § 12.)

Defendant argues that Section 12 of the BPA makes an executed lease with Plaintiff at closing an essential term of the contract for Defendant. Defendant shows that Plaintiff did not obtain new lease within 21 days after acceptance, nor did he submit an application for such lease to Seller's landlord or Defendant within 15 days after acceptance. (UMF, ¶ 13.) Further, Plaintiff did not obtain a new lease with Seller's landlord to become effective concurrently with the close of escrow. (UMF, ¶ 14.)

Defendant argues that beyond not procuring the lease as a

condition precedent, Plaintiff attempted to procure the lease through fraud. Namely, Defendant refers to Plaintiff's prior attempt to purchase the Subject Property from Defendant in December of 2020, when the parties negotiated a 30-page lease. (UMF, ¶ 3.) The lease named the lessor as Quang D Phu and To Family Trust. (UMF, ¶ 4.)

Quang D Phu is Defendant's husband who passed away on March 1, 2023. (UMF, ¶ 5.)

Escrow was opened on July 13, 2023, and the instructions provided: "NEW LEASE: Buyer is presently negotiating a new lease for the subject business premises directly with the Lessor. A fully executed lease shall be deposited into escrow for final delivery to the buyer at the close of escrow." (UMF, ¶ 16; Kim Decl., Exh. F.) While Plaintiff and Defendant were negotiating lease terms, Plaintiff introduced a purported second lease, negotiated and executed by Quang D Phu, dated January 11, 2023, while he was terminally ill. (UMF, ¶¶ 17-19.) The document included parts of the former failed lease with changed terms favorable to Plaintiff and Quang D Phu's signature. (UMF, ¶ 22.) Defendant points to her own declaration stating that while she is involved in the business and all negotiations, she had never seen or discussed the purported lease with her late husband. (UMF, ¶ 20.)

Defendant points out inconsistencies and errors in the purported lease to show that it is fraudulent and cannot satisfy the condition precedent. Firstly, the lease is dated January 11, 2023, which was before the BPA was signed in July of 2023. (UMF, ¶ 19.) Defendant argues these dates are illogical given that the BPA, written by Plaintiff's broker, represented that Plaintiff was currently negotiating a lease with Defendant. (UMF, ¶ 16.) Defendant also shows that the lease provides a twenty-five year term plus three five-year options which is contradicted by the complaint, which alleges a twenty-year lease. (UMF, ¶ 21; Complaint, ¶ 8.) Defendant also establishes through Plaintiff's deposition testimony that Plaintiff never gave a copy of the purported lease to his broker, escrow company, or to Defendant. (UMF, ¶ 26, Kim Decl., Exh. M, Plaintiff's Depo., 152:1-25-153:1-13.) Defendant also shows that there are spelling errors, missing paragraph sections, and nonsense terms—including that the lessor would pay the lessee's operating expenses. (UMF, ¶ 21.)

Here, the Court agrees that Section 12 of the BPA unambiguously and plainly creates a condition precedent requiring Plaintiff to obtain the new lease. (See *Estate of Jones*, *supra*, 82 Cal.App.5th at p.

953 [terms like “subject to” or “conditioned upon” create express condition precedent].) The terms of the BPA provide that the sale is “contingent upon” the buyer obtaining a “new” lease. (UMF, ¶ 8, BPA, § 12.) Moreover, Defendant establishes that Plaintiff did not satisfy the condition precedent because Plaintiff did not obtain a new lease from Defendant within 21 days after acceptance, July 12, 2023, nor did Plaintiff apply for such a lease from Defendant within 15 days of July 12, 2023. (UMF, ¶ 13.)

To the extent that Plaintiff had already obtained a lease, Plaintiff presented it after October of 2023, thus, after the time allotted under the BPA. (UMF, ¶¶ 18-19.) Defendant establishes that the lease was not signed by Defendant, but rather, included a forged signature of her late husband, procured prior to his death and prior to Plaintiff and Defendant entering the BPA. The Court agrees that this lease, even if it was not forged, does not satisfy the condition precedent of obtaining a “new lease” from Defendant or Defendant’s landlord. The lease predates the BPA, thus showing it cannot be a “new” lease from Defendant and contradicting the language of the BPA drafted by Plaintiff’s broker, that Plaintiff was actively negotiating a new lease.

The Court therefore finds that Defendant establishes that Plaintiff’s failure to meet the condition precedent is a complete defense to Plaintiff’s breach of contract claim.

Plaintiff’s specific performance claim and declaratory relief claim are wholly dependent on Plaintiff’s breach of contract claim. Therefore, these claims do not independently survive. “[S]pecific performance is a remedy for breach of contract, a cause of action which requires proof the contract was breached.” (Golden West Baseball Co. v. City of Anaheim (1994) 25 Cal.App.4th 11, 49.) Plaintiff’s declaratory relief claim seeks a “determin[ation] that Plaintiff performed as agreed, and that the purchase Agreement remain in full force and effect and binding upon the parties pending resolution of the failure of the Defendant to act in accordance with the Purchase Agreement in the transfer of the business assets and possession to Plaintiff.” (Complaint, ¶ 41.) Adjudication of the declaratory relief claim would be duplicative of the breach of contract claim.

As this motion for summary judgment is not opposed, Plaintiff does not meet his burden of raising any triable issues of material fact.

Accordingly, Defendant's motion for summary judgment is GRANTED. Pursuant to this ruling, the Court does not reach Defendant's alternative motion for summary adjudication.